

Illegal, unreported and unregulated (IUU) fishing is fishing which does not comply with national, regional or global fisheries conservation and management obligations.

IUU fishing can occur within zones of national jurisdiction, within areas of control of regional fisheries bodies, or on the high seas. With the increasing demand for fishery products and the decline of fishery resources, the increasing incidence of IUU fishing has been of great concern to responsible fishing nations.

In a 1999 report to the United Nations (UN) General Assembly, the UN Secretary General stated that IUU fishing was "one of the most severe problems currently affecting world fisheries."

By hindering attempts to regulate an otherwise legitimate industry, IUU fishing puts at risk millions of dollars of investment and thousands of jobs as valuable fish resources are wantonly depleted below sustainable levels. Disregard for the environment through high levels of bycatch and abandonment of fishing gear gives rise to further concern, as does the general disregard for crew safety on IUU fishing boats.

IUU fishing on the high seas is a highly organised, mobile and elusive activity undermining the efforts of responsible countries to sustainably manage fish resources. International cooperation is vital to effectively combating this serious problem. By using regional fisheries management organisations as a vehicle for cooperation, fishing states, both flag and port states, and all major market states, should be able to coordinate actions to effectively deal with IUU fishing activity.

At the initiative of the United Nations FAO Committee on Fisheries; States developed the Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing. It is the first legally-binding global instrument aimed at combating IUU fishing. Australia signed the Agreement on 27 April 2010 and ratified it on 20 July 2015.

IUU fishing affects Australian harvest of fish stocks both within and beyond the Australian Fishing Zone (AFZ), and the long-term survival of fishing industries and communities. For example, the illegal fishing of Patagonian toothfish in Australia's remote Southern Ocean territories highlights the damaging effects of unregulated fishing on the sustainability of stocks and the viability of the Australian industry.

IUU fishing also occurs in Australia's remote sub-Antarctic territories of Heard and the McDonald Islands lie in the southern Indian Ocean about 4,000 km south-west of Perth, and in Australia's northern waters where it is largely undertaken by traditional or small-scale vessels from Southeast Asia.

Since 1974, traditional Indonesian vessels have been allowed access to a defined area of the Australian fishing zone (north-west of Broome) in which Australia agrees not to enforce its fisheries laws – an area known as the MoU Box. IUU fishing has occurred both in the MoU Box (through a failure to comply with agreed rules) and as a result of opportunistic fishing in areas around the MoU Box.

More recently, there has been a shift away from what could be termed 'traditional' fishing activities in Australia's waters. Vessels have been found further east, as far across as the Torres Strait, and are targeting other species such as shark (for its valuable fin) and sea cucumber.

Source: https://www.agriculture.gov.au/agriculture-land/fisheries/iuu/overview_illegal_unreported_and_unregulated_iuu_fishing